

02:00 PM

25-CLJ-02641 KARON REID VS. BWNVT MOTORS, INC., ET AL.

LINE 5

KARON REID
BWNVT MOTORS, INC.

MICHAEL A. KLITZKE
JOHN W. RANUCCI

PLAINTIFF: KARON REID'S MOTION FOR ORDER DEEMING MATTERS ADMITTED FOR BWNVT, MOTORS INC. DBA SERRAMONTE FORD'S FAILURE TO RESPOND TO REQUESST FOR ADMISSION, SET ONE

TENTATIVE RULING:

This motion was continued to November 30, 2026 with agreement of the Plaintiff to facilitate finalizing a settlement.

02:00 PM

CIV529593

MICHAEL L. CACCI, ET AL. VS WENDY HOPKINS, ET AL.

LINE 6

MICHAEL L. CACCI
SALLY HOPKINS

MARK HAESLOOP
PRO PER

PLAINTIFF: SALLY HOPKINS'S MOTION TO ENFORCE SETTLEMENT

TENTATIVE RULING:

Motion papers and supporting documents must be served on all parties at least 16 court days before the hearing. (See Code Civ. Proc. section 1005 subd. (b).) Proof of service of the moving papers must be filed no later than five court days prior to the date appointed for hearing. (See Cal. Rules of Court, rule 3.1300(c).) No proof of service was filed until September 22, 2026 and that proof of service was invalid for numerous reasons—Motion is accordingly DENIED.

However, even if the motion was properly served and the proof of service was timely filed, the motion still lacks merit for numerous reasons. None of the relief that the moving party seeks appears to be within the Court's jurisdiction. *Machado v. Myers* (2019) 39 Cal. App. 5th 779, 790 ("The power of the trial court under Code of Civil Procedure section 664.6 is extremely limited. The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.")

The Court also has no evidence that would support a conclusion that there is any need/jurisdiction to enforce a purported ten-year-old settlement agreement. *Stump's Mkt., Inc. v. Plaza de Santa Fe Ltd., LLC* (2013) 212 Cal. App. 4th 882, 889 (finding the Court erred by retaining jurisdiction over an extended period of years). To the extent that the moving party believes that the purported settlement effects relief at issue in a bankruptcy case, it would appear it should be raised (if appropriate) in the bankruptcy case.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected in the minute Order. No separate order will follow.

NO UNLAWFUL DETAINER MATTERS ON CALENDAR FOR 9/28/26